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Case Number: 25STCV08671 Hearing Date: July 14, 2026 Dept: 510

No.

13 - Delmy Escobar v. Reynaldo Alonzo Barrera

Defendant Reynaldo Alonzo Barrera's Demurrer
and Motion to Strike Portions of Plaintiff's Complaint

Demurrer

Defendant

Reynaldo Alonzo Barrera demurs to 11 causes of action alleged in Plaintiff's complaint.

Specifically, Defendant demurs to Plaintiff's causes of action for (1) tortious breach of warranty of habitability; (2) unpermitted/illegal unit in violation of common law; (3) retaliatory eviction; (4) intentional infliction of emotional distress; (5) termination of estate (Civil Code §789.3); (6) violation of California Health and Safety Code § 26148, et seq.; (7) intentional misrepresentation; (8) violation of California Health and Safety Code § 25359.7; (9) unjust enrichment; (10) breach of contract; and (11) violation of Civil Code § 1942.4.

A.

Uncertainty

Defendant

demurs to Plaintiff's causes of action for unpermitted/illegal unit in violation of common law and breach of contract on the grounds that they are uncertain. "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of Cal., Inc.

(1993) 14 Cal.App.4th 612, 616.) “ ‘

“Demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” ’ ’ ” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, alterations omitted.) The complaint must sufficiently apprise defendants of the claims against them. (Ibid.) The Court finds that the complaint clears that low bar in apprising Defendant of these claims brought against him.

B.

Statute
of Limitations

A

demurrer should be sustained where “the complaint shows on its face that the statute [of limitations] bars the action.” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) Defendant argues that the fraud and breach of contract causes of action are barred by the statute of limitations.

The Court agrees that the fraud cause of action is untimely. Fraud has a three-year statute of limitations, which begins running when the plaintiff discovers the facts constituting the fraud. (Code Civ. Proc., § 338(d).) This provision “effectively codifies the delayed discovery rule in connection with actions for fraud, providing that a cause of action for fraud ‘is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.’ ” (Brandon G. v. Gray (2003) 111 Cal.App.4th 29, 35.)

Here, Plaintiff alleges that she reasonably relied on Defendant’s false representations that the property was habitable “by entering into a verbal lease agreement and moving into the Subject Property in October 2014.” (Compl., ¶ 172.) Liberally construing the complaint in Plaintiff’s favor, it appears that Plaintiff first discovered the habitability issues in early 2015, when cockroach and vermin infestations forced her to dispose of her bed. (See id. ¶ 70.) Reading these allegations as true, the period during which Plaintiff could bring a fraud claim accrued in 2015 and ended in 2018. This complaint was brought in March 2025. Therefore, the fraud claim is barred by the statute of limitations.

However,

Plaintiff's breach of contract claim is timely. "The common law theory of continuous accrual posits that a cause of action challenging a recurring wrong may accrue not once but each time a new wrong is committed." (Aryeh v.

Canon Business Solutions, Inc.

(2013) 55 Cal.4th 1185, 1189.) Plaintiff sufficiently alleges facts showing that Defendant had an obligation arising from the parties' lease agreement that was continuously breached up until the filing of the complaint. For example, Plaintiff alleges that, as late as December 16, 2024, the Los Angeles Department of Public Health inspectors observed mold at the property. (Compl., ¶ 76.) The complaint alleges "Despite these findings and formal citations, the landlord has not taken corrective action, as of yet." (Ibid.) Therefore, the breach of contract claim, as alleged, is not barred by the statute of limitations.

C.

Sufficiency
of Allegations

1. First Cause

of Action: Breach of Implied Warranty of Habitability

"The elements of a cause of action for breach of the implied warranty of habitability 'are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.' " (Peviani v. Arbors at California Oaks Property Owner, LLC (2021) 62 Cal.App.5th 874, 891.)

Defendant

argues that Plaintiff does not sufficiently allege that he had notice of the uninhabitable conditions. However, Plaintiff clearly alleges that "Defendants had actual and constructive knowledge of the defective conditions alleged herein, having been informed through tenant complaints and government inspections, but despite such notice, failed to adequately repair and abate the conditions." (Compl., ¶ 92.) Further, Plaintiff alleges that she "repeatedly notified Defendants of these conditions through verbal complaints, written notices, and government inspections." (Id., ¶ 39.) This is sufficient at the pleading stage to allege the landlord had notice of the conditions at the

property.

The

demurrer as to this cause of action is overruled.

2. Second Cause

of Action: Unpermitted/Illegal Unit in Violation of Common Law

Plaintiff

alleges sufficient facts for this cause of action. The absence of a certificate of occupancy normally renders the landlord unable to collect rent. (See *Gruzen v. Henry* (1978) 84 Cal.App.3d 515, 518-519.) Here, Plaintiff alleges that the property was not registered with a Certificate of Occupancy and, therefore, she is entitled to the rent paid during the periods that it was not certified. (Compl., ¶¶ 100-103.) These are ultimate facts that adequately support Plaintiff's claim at the pleading stage.

The

demurrer as to this cause of action is overruled.

3. Third Cause

of Action: Retaliatory Eviction

Plaintiff does not allege sufficient

facts for retaliatory eviction under Civil Code section 1942.5. Civil Code section 1942.5 prohibits a lessor from retaliating against a tenant within 180 days of the tenant's exercise of a cognizable right under the section. While Plaintiff alleges Defendant pressured her to vacate her unit after she legally reported uninhabitable conditions (Compl., ¶¶ 110-111), she does not allege that the retaliatory act occurred within 180 days of her report.

The

demurrer as to this cause of action is sustained with leave to amend.

4. Sixth Cause

of Action: Intentional Infliction of Emotional Distress

Plaintiff

alleges sufficient facts for this cause of action. Its elements are "(1) extreme and outrageous conduct by the defendant with the intention of causing,

or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.)

Defendant

argues that Plaintiff does not sufficiently allege the first element of extreme and outrageous conduct. The Court disagrees. Plaintiff alleges Defendant refused to repair numerous dangerous and uninhabitable conditions such as "persistent mold growth on the walls, ceilings, and under the sink in the kitchen and bathroom; infestations of cockroaches in the main bedroom, kitchen, living room, bathroom, patio, and refrigerator; rats nesting in the heater and kitchen; spiders and termites that damaged personal property, including the tenant's bed; [and] a non-functional heater that has remained inoperable since 2014." (Compl., ¶ 22; see also id., ¶ 141.) This is sufficient at the pleading stage to plead extreme and outrageous conduct.

The demurrer as to this cause of action is overruled.

5. Seventh

Cause of Action: Termination of Estate, Civil Code § 789.3

Plaintiff

alleges sufficient facts for this cause of action. Civil Code section 789.3 provides, "A landlord shall not with intent to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as his residence willfully cause, directly or indirectly, the interruption or termination of any utility service furnished the tenant, including, but not limited to, water, heat, light, electricity, gas, telephone, elevator, or refrigeration, whether or not the utility service is under the control of the landlord."

Plaintiff

alleges that Defendant threatened or engaged in acts "to interrupt utility services, including water and electricity, to force Plaintiff to vacate the Subject Property." (Compl., ¶ 154.) Defendant argues that Plaintiff must allege the specific acts committed by Defendant that violated Plaintiff's utilities. The Court disagrees. Plaintiff's allegations that he interrupted her water and electricity services suffice to state a claim at the pleading stage. Further details can be obtained through discovery.

The demurrer as to this cause of action is overruled.

6. Eighth Cause

of Action: Violation of California Health & Safety Code § 26148 et seq.

Health

& Safety Code section 26148 requires landlords to provide certain mold disclosures to tenants. However, the section does not indicate that there is any private right of action to enforce it, nor does Plaintiff provide relevant legal authority supporting this in her complaint or opposition. While the facts underlying this claim can support liability under other legal theories, violation of Health & Safety Code section 26148 is not itself a standalone cause of action.

The demurrer as to this cause of action is sustained
without leave to amend.

7. Ninth Cause

of Action: Intentional Misrepresentation

As

discussed above, this claim is barred by the applicable statute of limitations. Because the demurrer is sustained as to the fraud claim on this ground, the Court need not and does not address Defendant's arguments regarding the sufficiency of Plaintiff's allegations.

The demurrer as to this cause of action is sustained
with leave to amend.

8. Eleventh

Cause of Action: Violation of California Health & Safety Code § 25359.7

Health

and Safety Code section 78700 provides, "Any owner of nonresidential real property who knows, or has reasonable cause to believe, that any release of hazardous substance has come to be located on or beneath that real property shall, prior to the sale, lease, or rental of the real property by that owner, give written notice of that condition to the buyer, lessee, or renter of the real property." (Health & Saf. Code, § 78700 [formerly codified at Health

& Saf. Code, § 25359.7(a)].)

Defendant

argues that Plaintiff cannot state a claim because this section imposes an obligation on the tenant to notify the landlord of any hazardous substances under § 25359.7(b), which is now Health & Saf. Code, § 78705. However, even if Plaintiff has an obligation to report certain conditions, this does not negate the landlord's independent obligation to do the same. Plaintiff alleges sufficient facts for this cause of action.

The demurrer as to this cause of action is overruled.

9. Twelfth

Cause of Action: Unjust Enrichment

Plaintiff

does not state sufficient facts to support a cause of action for unjust enrichment. "California does not recognize a cause of action for unjust enrichment." (Hooked Media Group, Inc. v. Apple Inc. (2020) 55 Cal.App.5th 323, 336.) "Unjust enrichment is 'a general principle, underlying various legal doctrines and remedies,' rather than a remedy itself." (Melchior v. New Line Productions, Inc. (2003) 106 Cal.App.4th 779, 793.) "It is synonymous with restitution." (Ibid.)

The demurrer as to this cause of action is sustained without leave to amend.

10. Thirteenth

Cause of Action: Breach of Contract

Plaintiff

does not allege sufficient facts for breach of contract. To state a cause of action for breach of contract, Plaintiff must allege "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Plaintiff

sufficiently alleges all required elements except for existence of a contract. (See Compl., ¶¶ 197-205.) In paragraph 69, Plaintiff alleges she entered into a

written lease agreement with Defendant. (Id., ¶ 69.) In paragraph 197, Plaintiff alleges she entered into a verbal lease agreement. (Id., ¶ 197.)

The

Court grants Plaintiff leave to amend to clearly allege the type of contract the parties entered. If the contract was written, it must either be attached, pled verbatim, or pled by its legal effect. (See *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489.) If the contract was a verbal agreement, it may be “pleaded generally as to its effect, because it is rarely possible to allege the exact words.” (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

The demurrer as to this cause of action is sustained with leave to amend.

11. Fourteenth

Cause of Action: Civil Code § 1942.4

Plaintiff alleges sufficient facts for this cause of action. Civil Code section 1942.4(a) provides that a landlord may not demand or collect rent if: (1) the dwelling is substandard or not habitable; (2) a public employee inspected the premises and notified the landlord of his “obligations to abate the nuisance or repair the substandard conditions”; (3) the conditions continued for 35 days after that notice; and (4) the tenant did not cause the conditions.

Defendant argues that Plaintiff does not allege specific facts regarding the content of the notice, the date of the inspection, and what specific prohibited conditions were cited. These details are not necessary at the pleadings stage; they will be revealed in the discovery stage. Plaintiff’s allegations that “public officer housing and health inspectors provided written notice to the Defendants of their obligation to repair prohibited conditions” (Compl., ¶ 209), and that Defendant failed to repair the conditions identified within 35 days of receiving the notice (id., ¶ 211) is sufficient.

The demurrer as to this cause of action is overruled.

Motion
to Strike

Defendant

Reynaldo Alonzo Barrera moves to strike 15 portions of Plaintiff's complaint. Each challenged portion pertains to Plaintiff's requests for punitive damages or attorney fees.

A.

Punitive

Damages

Courts

may strike allegations that are "not essential to the statement of a claim or defense," "neither pertinent to nor supported by an otherwise sufficient claim or defense," or "[a] demand for judgment requesting relief not supported by the allegations." (Code Civ. Proc., § 431.10(b).) Courts may strike allegations related to punitive damages where the facts alleged "do not rise to the level of malice, oppression or fraud necessary" to recover punitive damages under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.)

Defendant argues that Plaintiff pleads

allegations supporting an improper request for punitive damages under the following causes of action: (1) breach of warranty of habitability; (2) retaliatory eviction; (3) negligence; (4) private nuisance; (5) termination of estate; and (6) intentional misrepresentation.

First, the Court agrees with Defendant

that recovery of punitive damages is not available for Plaintiff's cause of action for negligence. The Court will strike allegations that refer to punitive damages under that cause of action.

Second, the Court sustained

Defendant's demurrer as to Plaintiff's retaliatory eviction and intentional misrepresentation claims with leave to amend. Therefore, Defendant's request to strike allegations regarding recovery of punitive damages on the basis that Plaintiff's allegations are insufficient to state a claim are moot.

Third, the Court will not strike Plaintiff's

request for punitive damages pled under private nuisance. While Defendant

argues that punitive damages are not available for a private nuisance claim, he provides no authority that stands for this proposition, nor is the Court aware of any.

Fourth,

the Court will not strike requests for punitive damages pled under claims for breach of warranty of habitability and termination of estate. Defendant argues that Plaintiff does not meet the heightened pleading standard for punitive damages under Civil Code section 3294. The Court disagrees. Plaintiff alleges Defendant refused to repair numerous dangerous and uninhabitable conditions such as “persistent mold growth on the walls, ceilings, and under the sink in the kitchen and bathroom; infestations of cockroaches in the main bedroom, kitchen, living room, bathroom, patio, and refrigerator; rats nesting in the heater and kitchen; spiders and termites that damaged personal property, including the tenant’s bed; [and] a non-functional heater that has remained inoperable since 2014.” (Compl., ¶ 22; see also id., ¶ 141.) She also alleges that “Defendants’ behavior is malicious because they engage in despicable conduct that willfully and consciously disregards the legal and equitable rights of their tenants.” (Id., ¶ 50.)

The

Court cannot conclude that, as a matter of law, these allegations do not suffice to constitute malice as “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others” (Civ. Code, § 3294, subd. (c)(1)) or oppression as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights” (id., subd. (c)(2)).

B.

Attorney

Fees

Defendant

also argues that Plaintiff makes improper requests for attorney fees under several statutes. The Court will address each in turn.

First,

the Court will not strike Plaintiff’s request for attorney fees for violation of Civil Code section 1942.5. Defendant’s demurrer as to this cause of action was sustained with leave to amend. Therefore, Defendant’s request to strike

allegations regarding recovery of attorney fees on the basis that Plaintiff's allegations are insufficient to state a claim are moot.

Second, the Court overruled

Defendant's demurrer as to Plaintiff's causes of action for violation of Civil Code sections 789.3 and 1942.4. In so doing, the Court found that these claims are adequately supported by the allegations in the complaint. Further, both statutes provide for the recovery of attorney fees. The Court will not strike recovery of attorney fees under these statutes.

Third, the Court agrees with Defendant

that, given the facts alleged in the complaint, attorney fees are not recoverable under Civil Code sections 1780 and 3304, and Code of Civil Procedure section 1021.5. The Court will strike these references.

Disposition

Defendant Reynaldo Alonzo Barrera's

demurrer to Plaintiff's complaint is overruled

as to the first, second, sixth, seventh, eleventh, and fourteenth causes of action. It is sustained with 21 days'

leave to amend as to the third, ninth, and thirteenth causes of action. It

is sustained without leave to amend

as to the eighth and twelfth causes of action.

Defendant's

motion to strike portions of Plaintiff's complaint is granted in part.

The

Court hereby strikes the following allegations

in Plaintiff's complaint: (1) the phrase "thereby entitling each Plaintiff to punitive damages pursuant to Civil Code § 3294 in an amount to be proven at trial" at paragraph 126; and (2) the phrases "California Code of Civil Procedure § 1021.5," "California Civil Code § 1780(a), and California Civil Code § 3304" in the prayer section, paragraph 6.